

Non-Disclosure Agreement

NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement ("Agreement") is entered into on 2026-02-12 between **Thompson, Davis and Johnson** ("Disclosing Party") and **O'Neill Inc** ("Receiving Party").

1. CONFIDENTIAL INFORMATION

"Confidential Information" means any and all technical and non-technical information disclosed by the Disclosing Party, including but not limited to: trade secrets, business plans, customer data, financial information, and proprietary technology.

2. OBLIGATIONS

The Receiving Party agrees to:

- a) Maintain confidentiality of all Confidential Information
- b) Not disclose Confidential Information to third parties without prior written consent
- c) Use Confidential Information solely for the purpose of scale leading-edge deliverables

3. TERM

This Agreement shall remain in effect for 3 years from the date of execution.

4. EXCLUSIONS

This Agreement does not apply to information that: (a) is publicly available, (b) was known to the Receiving Party prior to disclosure, or (c) is independently developed.

5. RETURN OF MATERIALS

Upon termination, the Receiving Party shall return or destroy all Confidential Information.

Thompson, Davis and Johnson

O'Neill Inc